

THE BHARATIYA NAGARIK SURAKSHA SANHITA, 2023 (Act No. 46 of 2023)
Enactment Authority: Ministry of Home Affairs / Parliament of India
Year of Enactment: 2023

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Section 1: Short title, extent and commencement

Section 1. Short title, extent and commencement.?

- (1) This Act may be called the Bharatiya Nagarik Suraksha Sanhita, 2023.
 - (2) It extends to the whole of India.
 - (3) It shall come into force on the 1st day of July, 2024 as notified by the Central Government.
- This Sanhita replaces the Code of Criminal Procedure, 1973 and provides the statutory framework for investigation, arrest, bail, trial, and digital criminal justice procedures across India.

Section 2: Definitions

Section 2. Definitions.? In this Sanhita, unless the context otherwise requires,?

- (a) 'audio-video electronic means' includes use of any communication device for the purpose of video conferencing, recording of processes of identification, search and seizure or evidence, transmission of electronic communication and for such other purposes and by such manner as the State Government may, by rules, provide;
- (b) 'bailable offence' means an offence which is shown as bailable in the First Schedule, or which is made bailable by any other law for the time being in force; and 'non-bailable offence' means any other offence;
- (c) 'cognizable offence' means an offence for which, and 'cognizable case' means a case in which, a police officer may, in accordance with the First Schedule or under any other law for the time being in force, arrest without warrant;
- (d) 'electronic communication' means the communication of any message, verbal, written, video, or electronic information transmitted or received through any wire, radio, visual or other electromagnetic means;
- (e) 'investigation' includes all the proceedings under this Sanhita for the collection of evidence conducted by a police officer or by any person (other than a Magistrate) who is authorised by a Magistrate in this behalf;
- (f) 'police report' means a report forwarded by a police officer to a Magistrate under sub-section (3) of section 193.

Section 35: When police may arrest without warrant

Section 35. When police may arrest without warrant. ?

- (1) Any police officer may without an order from a Magistrate and without a warrant, arrest any person?
- (a) who commits, in the presence of a police officer, a cognizable offence; or
- (b) against whom a reasonable complaint has been made, or credible information has been received, or a reasonable suspicion exists that he has committed a cognizable offence punishable with imprisonment for a term which may be less than seven years or which may extend to seven years:
- Provided that the police officer shall, in all cases where the arrest of a person is not required under the provisions of this sub-section, record the reasons in writing for not making the arrest.
- (2) For offences punishable with imprisonment for less than three years and where the person is infirm or above sixty years of age, no arrest shall be made without prior permission of an officer not below the rank of Deputy Superintendent of Police.

Section 36: Designated police officer and information of arrest

Section 36. Designated Police Officer in every district.?

- (1) The State Government shall establish a designated police officer in every district and at every police station who shall be responsible for maintaining information about arrested persons.
- (2) The name, address, and nature of offence of every person arrested shall be prominently displayed in digital form at the district police headquarters and at every police station.
- (3) The arrested person has the statutory right to have one friend, relative, or other person informed of his arrest immediately.

Section 173: Information in cognizable cases, e-FIR and Zero FIR

Section 173. Information in cognizable cases (Registration of FIR, e-FIR and Zero FIR).?

- (1) Every information relating to the commission of a cognizable offence, if given orally to an officer in charge of a police station, shall be reduced to writing by him or under his direction, and be read over to the informant; and every such information, whether given in writing or reduced to writing as aforesaid, shall be signed by the person giving it.
- (2) Information may also be given electronically (e-FIR), which shall be taken on record by the police officer: Provided that the signature of the person giving the information shall be obtained within three days before the electronic information is taken on record.
- (3) Information relating to the commission of a cognizable offence, irrespective of the area where the offence is committed, may be given to an officer in charge of a police station (Zero FIR), and such police station shall register the information and transfer the same to the police station having jurisdiction.
- (4) In cases where the offence is punishable with imprisonment for three years or more but less than seven years, the police officer may, with the prior permission of an officer not below the rank of Deputy Superintendent of Police, conduct a preliminary enquiry within fourteen days to ascertain whether a prima facie case exists.

Section 176: Procedure for investigation and mandatory forensic examination

Section 176. Procedure for investigation and mandatory forensic examination.?

- (1) If, from information received or otherwise, an officer in charge of a police station has reason to suspect the commission of an offence which he is empowered under section 175 to investigate, he shall forthwith send a report of the same to a Magistrate.
- (2) On information relating to the commission of an offence punishable for seven years or more, the police officer shall cause the forensic expert to visit the crime scene to collect forensic evidence, and cause the process of collection of evidence to be recorded on mobile phone or any other electronic device.
- (3) Any search or seizure made under this Chapter shall be recorded by audio-video electronic means, preferably by mobile phone, and the police officer shall forward the recording to the District Magistrate or Sub-Divisional Magistrate without delay.

Section 187: Procedure when investigation cannot be completed in twenty-four hours and remand

Section 187. Remand and custody procedure.?

- (1) Whenever any person is arrested and detained in custody, and it appears that the investigation cannot be completed within the period of twenty-four hours, the officer in charge of the police station shall forward the accused to the nearest Magistrate.
- (2) The Magistrate may authorise the detention of the accused person in such custody as such Magistrate thinks fit, for a term not exceeding fifteen days on the whole, or in parts, at any time during the initial forty days or sixty days out of the total period of sixty days or ninety days of detention.
- (3) The total period of detention shall not exceed ninety days where the investigation relates to an offence punishable with death, imprisonment for life or imprisonment for a term of not less than ten years, and sixty days for any other offence.

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Section 193: Report of police officer on completion of investigation (Chargesheet)

Section 193. Chargesheet / Final police report.?

- (1) Every investigation under this Chapter shall be completed without unnecessary delay.
- (2) The investigation in relation to an offence of rape shall be completed within two months from the date on which the information was recorded.
- (3) As soon as the investigation is completed, the officer in charge of the police station shall forward to a Magistrate a police report (chargesheet) in electronic form or physical form stating the names of the parties, nature of information, names of witnesses, whether any offence appears to have been committed, and whether the accused has been arrested.
- (4) The police officer shall submit the chargesheet within ninety days from the date of arrest or initiation of investigation.

Section 479: Maximum period for which an undertrial prisoner can be detained and statutory bail

Section 479. Statutory Bail for Undertrial Prisoners.?

- (1) Where a person has, during the period of investigation, inquiry or trial under this Sanhita of an offence under any law (not being an offence for which the punishment of death or life imprisonment has been specified as one of the punishments), undergone detention for a period extending up to one-half of the maximum period of imprisonment specified for that offence under that law, he shall be released by the Court on bail on his personal bond with or without sureties.
- (2) Where such person is a first-time offender (who has never been convicted of any offence in the past), he shall be released on bail if he has undergone detention for a period extending up to one-third of the maximum period of imprisonment specified for that offence.
- (3) The Superintendent of the prison where the accused person is detained shall make an application to the Court on completion of the said period for release on statutory bail.

Section 482: Direction for grant of bail to person apprehending arrest (Anticipatory Bail)

Section 482. Anticipatory Bail.?

(1) Where any person has reason to believe that he may be arrested on accusation of having committed a non-bailable offence, he may apply to the High Court or the Court of Session for a direction under this section that in the event of such arrest he shall be released on bail; and that Court may, after taking into consideration:

- (a) the nature and gravity of the accusation;
- (b) the antecedents of the applicant including whether he has previously undergone imprisonment on conviction by a Court;
- (c) the possibility of the applicant to flee from justice; and
- (d) where the accusation has been made with the object of injuring or humiliating the applicant,

either reject the application forthwith or issue an interim order for the grant of anticipatory bail.

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Section 530: Use of electronic communication and audio-video electronic means in proceedings

Section 530. Electronic proceedings and digital justice.?
All trials, inquiries, proceedings, examination of complainant and witnesses, recording of evidence, framing of charges, pronouncement of judgments, issuance, service and execution of summons and warrants, holding of bail hearings, and all appellate proceedings under this Sanhita may be held in electronic form by using audio-video electronic means.